

25STCV05589 25STCV05589

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Case Number: 25STCV05589 Hearing Date: June 25, 2026 Dept: 316

BACKGROUND

This case

is a lemon law action.

On February

27, 2025, Plaintiff Oswaldo Cabrera filed a complaint against Defendant General Motors, LLC and DOES 1-20. The complaint alleges two causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On January

7, 2026, the parties filed a Notice of Settlement of Entire Case.

On May

8, 2026, Plaintiff filed a Motion for Attorney's Fees ("Motion").

On June

11, 2026, Defendant filed an opposition.

On

June 17, 2026, Plaintiff filed a reply.

TENTATIVE

RULING

Plaintiff's

Motion for Attorney's Fees is GRANTED in part. However, the Court will award \$20,407.25 in total fees and costs.

LEGAL STANDARD

Under

the Song Beverly Consumer Warranty Act, if a buyer prevails in the action, the buyer is allowed to recover costs and expenses, including attorney's fees based on actual time expended. (Civ. Code § 1794, subd. (d).)

The

determination of a reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095.) When assessing the amount of

any attorney's fee award, courts typically determine what

is reasonable through the application of the "lodestar" method. Under the

lodestar method, a base amount is calculated from a compilation of time reasonably spent and the reasonable hourly compensation of each attorney. (See Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of

University of California (1998)

67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

A

plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Counsel has the burden of providing the reasonable number of hours devoted to the litigation, through declarations, or redacted or unredacted timesheets or billing records. (See Concepcion v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1325.) "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

DISCUSSION

Here,

Plaintiff seeks \$33,652.99 for attorney's fees and costs. (See Motion, p. 1:25.)

The

Court will reduce this requested amount and award fees and costs in the amount of \$20,407.25.

I.

Reasonable

Hourly Rates

When considering

each attorney's history, experience, and expertise, the Court finds the listed hourly rates reasonable

There

were four attorneys who worked on Plaintiff's case – David N. Barry, Elizabeth Quinn, Kristopher Storti, and Christopher Derhartounian. (See Motion, p. 14:4-12.)

Barry claims an hourly rate of \$695/hr., Quinn claims an hourly rate of \$675/hr., Storti claims an hourly rate of \$600/hr., and Derhartounian claims an hourly rate of \$350/hr. (See *ibid.*)

Barry has

been a licensed attorney for over 24 years. (See Barry Decl., ¶ 18.) 21 of those 24 years have been spent practicing lemon law. (See *ibid.*) Barry has handled over hundreds of lemon law cases. (See *ibid.*)

Quinn is

a Supervising Attorney and Senior Associate at the Barry Law Firm. (See Quinn Decl., ¶ 1.) She has been a licensed attorney for over 26 years. (See *ibid.*) Eight of those 26 years have been spent practicing lemon law with the Barry Law Firm. (See *id.* at ¶ 11.)

Storti

is an Associate at the Barry Law Firm. (See Storti Decl., ¶ 1.) He has been a licensed attorney for over 25 years. (See *id.* at ¶ 4.) Seven of those 25 years have been spent practicing lemon law with the Barry Law Firm. (See *id.* at ¶ 6.)

Derhartounian

is an Associate at the Barry Law Firm. (See Barry Decl., § 10(d).)

Derhartounian has been practicing law for over two years, which has been spent practicing lemon law at the Barry Law Firm. (See *ibid.*)

Given

each attorney's history, experience, and expertise, the Court finds the requested rates reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

II.

Reasonable

Hours

The

Court will award \$18,859.50 for reasonable hours spent.

Here,

Plaintiff's counsel allegedly spent 47.2 hours on this case. This translates to \$28,978 in attorney's fees. (See Barry Decl., Exh. 2, p. 19.) Defendant requests the Court reduce or outright eliminate specific billing entries because they are unreasonable and excessive. (See Opposition, pp. 4:6-5:26.) The Court considers these specific entries below:

1.

Requested

award of \$607.50 for "prerepresentation" work done to evaluate Plaintiff's claims and determine whether the firm should take him up as a client

o UNREASONABLE, reduced to \$0 – Counsel shall not be awarded for any hours spent before Plaintiff was officially brought on as a client

2.

Requested

award of \$675 to draft Plaintiff's initial disclosures

o REASONABLE, no reduction – 1 hour to draft initial disclosures is reasonable, even if Counsel used a previous template

3.

Requested

award of \$3,112 for communications

o REASONABLE, no reduction – Defendant makes no convincing argument or put forth evidence that said fees are unreasonable other than conclusory

stating that they are excessive

4.

Requested

award of \$2,622.50 to review and respond to Defendant's Motion for Confidential Protective Order

o REASONABLE, no reduction – 2.9 hours to review a motion, draft and file an opposition, review reply brief, attend hearing, and review the Court's ruling is more than reasonable. Further, the Court ultimately granting the motion has no bearing on whether Counsel should be compensated for its work.

5.

Requested

award of \$875 to attend vehicle surrender

o REASONABLE, no reduction – The Court does not find a basis to reduce or eliminate time spent travelling to the vehicle surrender, which is part of the settlement of the case.

6.

Requested

award of \$1050 to prepare for and attend deposition of Defendant's Person Most Knowledgeable

o REASONABLE, no reduction – One hour to prepare for a deposition and two hours to conduct said deposition is reasonable, even if the scope of the deposition is limited to "routine" lemon law matters.

7.

Requested

award of \$543 for clerical and administrative tasks (i.e., reviewing and drafting court notices/filings)

o UNREASONABLE, reduced to \$0 – Counsel shall not be awarded for time spent in reviewing and drafting court notices/filings that appear to be administrative. These tasks could have been handled by support staff.

8.

Requested

award of \$1220 for Order to Show Cause Hearings

o REASONABLE, no reduction – Counsel shall still be awarded for their work, even if these hearings only occurred because of their shortcomings. At the end of the day, these preparing for and attending these hearings were necessary for Plaintiff's case to progress/continue.

9.

Requested

award of \$12,740.50 for this Motion and other related matters

o UNREASONABLE, reduced to \$3772.5 – The Court finds it should not take Counsel 3.7 hours to draft, review, prepare and finalize the present motion. This Motion is not new to Counsel nor is it relatively complex. Therefore, the Court will reduce the time spent working on this Motion to 2 hours at an hourly rate of \$675/hr. Further, it should not reasonably take Counsel 2 hours to review Defendant's opposition. Therefore, the Court will award Counsel for 0.5 hours of work at an hourly rate of \$675/hr. The Court will also reduce the claimed travel and hearing appearance time claimed as excessive. Lastly, Counsel's request for anticipated fees in relation to Defendant's Motion to Tax Costs is entirely removed because Defendant never filed said Motion. In sum, the Court will reduce the award for fees claimed in preparing this motion and related matters to \$3772.5 for 6.5 hours of work.

To

summarize, there will be a \$10,118.50 reduction in attorney's fees. Therefore, Counsel will award attorney's fees in the amount of \$18,859.50

III.

Lodestar

Multiplier

The

Court will not apply a 0.1 lodestar multiplier.

Once

the court determines the total lodestar amount, said amount may be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other

employment by the attorneys, and (4) the contingent nature of the fee award.” (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1132.)

Here, Plaintiff requests a lodestar multiplier of 0.1 because of the contingent nature of this case. (See Motion, p. 6:14-21.) However, based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find the multiplier reasonable or necessary. Therefore, the Court will not apply Plaintiff’s requested 0.1 lodestar multiplier.

IV.

Costs

Incurred

The

Court will award \$1,547.75 in costs incurred.

Here,

Defendant requests the Court reduce or outright eliminate Plaintiff’s incurred costs because they are unreasonable and excessive. (See Opposition, p. 6:1-21.)

The Court considers these specific costs below:

1.

Jury

Fees – Requested amount of \$150

o UNREASONABLE, reduced to \$0 – Plaintiff can request the posted jury fees be returned given that no jury was empaneled.

2.

Deposition

Costs – Requested amount of \$699

o REASONABLE, no reduction – Defendant’s argument is unsound; Plaintiff’s Memorandum of Costs is proof enough that Plaintiff actually incurred deposition costs.

3.

Court

Reporter Fees – Requested amount of \$550

o IRRELEVANT – Plaintiff is not requesting \$550 for Court Reporter Fees, therefore Defendant's request that the Court strike this requested amount is not relevant.

4.

Fees

for Electronic Filing or Service – Requested amount of \$112.25

o REASONABLE, no reduction – Plaintiff's Memorandum of Costs is evidence that these costs are legitimate.

5.

Other

Costs – Requested amount of \$279.44

o UNREASONABLE, reduced to \$200 – Parking and mediation fees were necessary to advance litigation. However, tacking on costs for mileage is overly excessive. Therefore, mileage costs are stricken entirely.

To

summarize, there will be a \$229.44 reduction in awarded costs. Therefore, Counsel will award \$1,547.75 for costs incurred.

CONCLUSION

For these reasons, Plaintiff's

Motion for Attorney's Fees is GRANTED in part. The Court will award \$20,407.25 in total fees and costs.